

VENDOR SERVICES AGREEMENT

CloudBase Infrastructure Pvt. Ltd. & RetailCo India Limited

Agreement Date: 15 May 2026 | Contract ID: CB-VSA-2026-118

1. PARTIES AND SCOPE

This Vendor Services Agreement ('Agreement') is between CloudBase Infrastructure Pvt. Ltd. ('Vendor') and RetailCo India Limited ('Client'). The Vendor agrees to provide cloud hosting, managed DevOps, and 24x7 infrastructure support services as detailed in Schedule A attached hereto.

2. TERM AND AUTO-RENEWAL

■ RISK CLAUSE — AUTO-RENEW TRAP: This Agreement shall commence on 1 June 2026 and continue for an initial period of twelve (12) months. Thereafter, the Agreement shall AUTOMATICALLY RENEW for successive periods of twelve (12) months each, UNLESS either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. Failure to provide timely notice shall result in automatic binding renewal at the rates prevailing at the time of renewal, which the Vendor may unilaterally revise with 30 days notice.

3. PAYMENT TERMS

The Client shall pay all invoices within 15 days of receipt. Late payments shall attract interest at 2% per month compounded monthly. The Vendor reserves the right to suspend services without notice if payment is delayed by more than 7 days. All fees are exclusive of GST and any applicable taxes which shall be borne solely by the Client.

4. SERVICE LEVELS

■ RISK CLAUSE — VAGUE SLA: The Vendor shall use commercially reasonable efforts to maintain service uptime. In the event of downtime, the Vendor's sole obligation shall be to restore services within a 'reasonable time frame' as determined in the Vendor's sole discretion. No specific uptime percentage is guaranteed. SLA credits, if any, shall be the Client's exclusive remedy and shall not exceed 10% of the monthly fee for the affected month.

5. DATA AND PRIVACY

The Client acknowledges that all data stored on Vendor infrastructure may be accessed by Vendor personnel for maintenance purposes without prior notice. The Vendor shall implement 'industry-standard' security practices but makes no specific representations regarding encryption standards, data residency, or compliance with the Personal Data Protection Bill (India) or GDPR. Data backups are performed on a best-effort basis.

6. LIABILITY

■ RISK CLAUSE — UNCAPPED CLIENT LIABILITY: NOTWITHSTANDING ANY OTHER PROVISION, THE CLIENT'S LIABILITY TO THE VENDOR FOR ANY BREACH OF THIS AGREEMENT SHALL BE UNLIMITED AND SHALL INCLUDE ALL DIRECT, INDIRECT, CONSEQUENTIAL, AND PUNITIVE DAMAGES. The Vendor's liability to the Client shall in no event exceed one (1) month's service fee. This asymmetric liability cap

is a fundamental term of this Agreement and cannot be waived.

7. TERMINATION FOR CONVENIENCE

■ RISK CLAUSE — TERMINATION PENALTY: The Client may terminate this Agreement for convenience by providing 90 days written notice, but shall be required to pay a termination fee equal to the total remaining contract value for the unexpired term plus 20% as liquidated damages. The Vendor may terminate for convenience with 30 days notice with no penalty.

8. INTELLECTUAL PROPERTY

All tools, scripts, and automation developed by the Vendor specifically for the Client's environment during the term of this Agreement shall remain the exclusive property of the Vendor. The Client is granted a non-exclusive, non-transferable licence to use such tools only during the term of this Agreement.

9. GOVERNING LAW

This Agreement is governed by the laws of India. Disputes shall be resolved by arbitration in Mumbai under the Arbitration and Conciliation Act, 1996. The arbitration proceedings shall be conducted in English. Costs of arbitration shall be borne by the losing party.

Schedule A — Services: Cloud hosting (AWS India region), managed Kubernetes, CI/CD pipeline management, 24x7 NOC support, monthly performance reports.

■ THIS IS A SYNTHETIC DOCUMENT FOR AI TESTING PURPOSES ONLY — NOT LEGALLY BINDING